



SPONSOR: Rep. Bolden & Sen. Brown
Rep. K. Johnson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 258

AN ACT TO AMEND TITLE 4 OF THE DELAWARE CODE RELATING TO LICENSES FOR SALE OF
ALCOHOLIC BEVERAGES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 543, Title 4 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 543. Grounds for refusal of license; transfer or extension of premises.

4 (k)(1) A municipality with a population of 50,000 or more may, by ordinance, promulgate rules for the location of
5 any new establishment licensed to sell alcoholic liquor for consumption off of the premises that are more restrictive than
6 those set forth in this section.

7 (2) The Commissioner shall refuse to grant a license for the sale of alcoholic liquor for consumption off of the
8 premises that does not comply with a municipal ordinance promulgated pursuant to paragraph (k)(1) of this section.

SYNOPSIS

This Act allows any municipality with a population of 50,000 or more to establish by ordinance rules for the location of liquor stores that are more restrictive than state law, and requires the Alcoholic Beverage Control Commissioner to refuse a license for any new establishment that does not comply with those rules.